

ANNUAL LEAVE

All employee leave days and other absences are subject to school division policies and regulations. The Superintendent shall establish any regulations necessary for the application of the division's policies regarding leave days and absences. For purposes of this policy, annual leave applies to full-time benefits-eligible twelve (12) month employees.

A. Basis for Earning Annual Leave

1. Non-Exempt Personnel. A new employee in a non-exempt position earns one day of annual leave a month (depending on date of hire) for the first six consecutive months of employment for a maximum of six (6) days. At the completion of six months, the remainder of the first year's annual leave will be advanced. Thereafter, annual leave will be advanced in July of each year. One additional day is earned for each additional year of service up to the thirteenth (13th) year. A maximum of twenty-four (24) days of annual leave are earned after the 13th year of service. The non-exempt personnel definition is outlined in School Board Policy 7022, Employee Classification.

- a. Credit of Annual Leave Upon Transfer of Position. An employee who is moving from a ten- or eleven-month position to a twelvemonth position will be given credit for all full-time contract years worked for Loudoun County Public Schools in computing initial annual leave. The employee will receive all annual leave at the beginning of the 12-month position for the fiscal year. Thereafter, leave will be advanced in July of each year. A full-time employee not covered by annual leave, as set forth in this policy, is eligible for personal leave each year. Personal leave is outlined in School Board Policy 7712, Sick Leave.
- b. Earned Annual Leave. A 12-month non-exempt employee will earn (one) 1 additional day of annual leave each July, up to a maximum of 24 days per fiscal year.

2. Exempt Personnel. A new employee in an exempt position will be advanced their annual leave (depending on date of hire). Thereafter, annual leave will be advanced in July of each year. The exempt personnel definition is outlined in School Board Policy 7022, Employee Classification.

- a. Exempt personnel shall earn annual leave as follows:
 - (i) 20 days for the first and second years of service
 - (ii) 21 days after two (2) years of service
 - (iii) 22 days after four (4) years of service
 - (iv) 23 days after six (6) years of service

ANNUAL LEAVE

- (v) 24 days after eight (8) years of service
- b. Annual leave will be prorated based on the number of contract/ assignment days actually worked after July 1 of the current school year.
- c. Credit of Annual Leave Upon Transfer of Position - An employee who is moving from a ten- or eleven-month position to a twelvemonth position will be given credit for all full-time contract years worked for Loudoun County Public Schools in computing initial annual leave earned with a minimum 20 days credit and up to a maximum of 24 days. A full-time employee not covered by annual leave, as set forth in this policy, is eligible for personal leave each year. Personal leave is outlined in School Board Policy 7712, Sick Leave.
- d. For those who receive less than 24 days credit, one additional day shall be awarded after 2 years of 12-month service, up to the maximum of 24 days total annual leave awarded July 1. After earning 20 days of annual leave for two years, future accruals shall be computed as follows:
 - (i) 21 days after two (2) years of 12-month service
 - (ii) 22 days after four (4) years of 12-month service
 - (iii) 23 days after six (6) years of 12-month service
 - (iv) 24 days after eight (8) years of 12-month service

B. Generally.

1. An employee may not claim anticipated annual leave unless they are currently employed by Loudoun County Public Schools.
2. An employee who is unable because of illness to begin work when a current contract begins may use accumulated annual leave not to exceed the balance from the preceding school year.

C. Limitations.

1. Accumulated annual leave will be calculated as of July 1 of each year. Employees may carry over up to sixty (60) annual leave days from June 30 to July 1 each year. Approval to carry over more than sixty (60) annual leave days from one fiscal year to the next must be approved by the Division Superintendent.

ANNUAL LEAVE

2. When an employee has accumulated more than sixty (60) days of annual leave as of June 30, any annual leave in excess of sixty (60) days will be converted to sick leave as of July 1.

D. Use of Annual Leave. Employees must submit annual leave plans in advance to their supervisor. Supervisors should make every effort to accommodate reasonable annual leave requests. The school division reserves the right to designate when some or all annual leave is taken. The immediate supervisor of an eligible employee is responsible for ensuring adequate staffing levels and should attempt, when feasible, to resolve vacation scheduling conflicts.

E. Payment of Annual Leave Upon Separation/Transfer.

1. Employees who terminate their employment will have their annual leave prorated based on total amount earned for the school year.

2. Any remaining earned annual leave will be paid to the employee in the second check following termination. Payment for earned annual leave will be calculated based upon the employee's regular rate of pay at the time of separation.

3. Employees exceeding their total earned annual leave will be charged in their final pay and/or will be invoiced for any amounts not recouped in the final paycheck.

4. An employee transferring from a twelve-month position to a ten- or eleven-month position will be paid for unused earned annual.

F. Miscellaneous. Supervisors shall exercise judgment in granting time away from the work site for emergencies which occur during the work day. Emergencies and other absences from assigned duties may be granted for a period of no more than one hour. Such absences will not be charged against the employee's sick leave or annual leave. Interpretation of this regulation should be referred to the Chief Human Resource Officer or the designee.

Former Policy 7-68 Adopted: 3/14/89

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Current Revision: 6/28/22

Confirmed: 10/7/24 (with technical changes)

Cross Refs: Policy [7022](#), Employee Classification; Policy [7712](#), Sick Leave;
Policy [7522](#), Absence Without Approved Leave